



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 27, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202105453 (Incident Date: September 12, 2021) regarding Lieutenant Fidel Rosario, Tax No. 943759 (DADS No. 2022-27513)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that the accidental damage to the complainant's cellular phone does not constitute "Force, Abuse of Authority, Discourtesy or Offensive Language (FADO)" misconduct, as defined under Chapter 18-A, Section 440 (c) (1) of the New York City Charter.

In this matter, Lieutenant Rosario properly seized the complainant's cellular phone, since the complainant was being arrested. Lieutenant Rosario placed the phone on the roof of the complainant's vehicle while the complainant was handcuffed. The phone was inadvertently left on the roof of the vehicle and as the vehicle was taken into the stationhouse for invoicing, the phone fell off the roof of the vehicle. The phone was recovered by a police officer and was alleged to have been damaged from the fall.

While the Police Commissioner fully acknowledges CCRB's authority to investigate damaged property under the Abuse of Authority doctrine, the Police Commissioner does not find that accidental damage to property falls under that doctrine. Thus, accidental damage to property; even ones involving property in the care and control of the Department, are to remain under the purview of the NYPD for investigation purposes.

Here it is clear from the record, and as noted by the CCRB in their Investigative Recommendation, that the damage to the cellular phone was purely accidental. It should be noted that whenever property in the care and control of the Department is damaged, the owners of such damaged property may seek reimbursement from the City.

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Therefore, based on the foregoing, Lieutenant Rosario will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 208-03 (14) (Arrests-General Processing/Safeguard Property) and Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department).

Yours truly,

PS
Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office